

Notice from the National Commission for Data Protection

regarding 1. Bill No. 8232 concerning car-sharing on public roads and amending the amended law of February 14, 1955, concerning the regulation of traffic on all public roads; 2. the draft Grand-Ducal Regulation concerning the regulation of car-sharing on public roads and amending: 1° the amended Grand-Ducal Regulation of November 23, 1955, concerning the regulation of traffic on all public roads; 2° the amended Grand-Ducal Regulation of August 26, 1993, concerning taxed warnings, deposits for non-resident offenders, as well as enforcement measures of legislation regarding the impounding of vehicles and points-based driving licenses; 3° the amended Grand-Ducal Regulation of January 26, 2016, concerning the reception and registration of road vehicles
Deliberation No. 39/AV16/2024 of June 21, 2024

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, concerning the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "Member States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

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2. By letters dated May 11 and 12, 2023, the Minister of Mobility and Public Works invited the National Commission to express its opinion on the draft law relating to car-sharing on public roads and amending the amended law of February 14, 1955 concerning the regulation of traffic on all public roads (hereinafter referred to as the "draft law"), as well as on the draft Grand-Ducal regulation concerning the regulation of car-sharing on public roads and amending: 1° the amended Grand-Ducal regulation of November 23, 1955 concerning the regulation of traffic on all public roads; 2° the amended Grand-Ducal regulation of August 26, 1993 relating to taxed warnings, deposits for non-resident offenders, as well as enforcement measures of legislation regarding the impounding of vehicles and concerning points-based driving licenses; 3° the amended Grand-Ducal regulation of January 26, 2016 relating to the reception and registration of road vehicles (hereinafter referred to as the "draft Grand-Ducal regulation").

3. It appears from the explanatory memorandum that the draft law under consideration aims in particular to "create a legal basis for a municipality to reserve parking spaces on public roads for shared vehicles that are identified as belonging to a car-sharing operator approved by the competent authorities and authorized by the municipality based on certain quality criteria." Furthermore, the draft Grand-Ducal regulation aims to establish and clarify the conditions for obtaining approval as a car-sharing operator, notably by providing details on the documents to be submitted, procedures, and

deadlines. The draft Grand-Ducal regulation also provides for the essential content of subscription contracts and pricing structures that the car-sharing operator offers to its clients, in order to ensure maximum transparency and quality of service without discrimination.

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5. Although the CNPD has been separately consulted on the aforementioned draft law and draft Grand-Ducal regulation, it considers it appropriate to address both draft texts in a single opinion, given that they raise similar issues related to data protection.

I. Preliminary Remarks

It should be noted that the information processed under the provisions of the texts under review is not all to be considered as personal data within the meaning of the GDPR. Article 4. 1) of the GDPR defines personal data as "any information relating to an identified or identifiable natural person (hereinafter referred to as the 'data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, data of

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localization, an online identifier, or to one or more specific elements related to their physical, physiological, genetic, mental, economic, cultural, or social identity." The National Commission wishes to emphasize that the definition of personal data refers to natural persons; thus, the processing of information concerning legal entities does not, in principle, fall within the scope of the GDPR.

6. Recital 14 of the GDPR states that "[t]his regulation does not cover the processing of personal data concerning legal entities, and in particular legal persons such as companies, including the name, legal form, and contact details of the legal person." However, it should be noted that information relating to legal entities may, where applicable, concern natural persons, for example, if it includes the name of the company's manager, and must therefore be considered personal data. Consequently, the GDPR will only apply if the law or the draft Grand-Ducal regulation involves the processing of personal data.

7. In this regard, the Article 29 Working Party indicates in its Opinion 4/2007 on the concept of personal data dated June 20, 2007, WP 136, that "information relating to legal entities may also be considered as 'concerning' natural persons as such (...). This may be the case when the name of the legal entity is derived from that of a natural person. Another scenario is that of a company's email address that is normally used by an employee, or information concerning a small business (from a legal perspective, an 'object' rather than a legal person) that may potentially describe the behavior of its owner."

II.

Provision of Operating Data (Art. 8 of the Draft Law)

8. Article 8 of the draft law under review requires each car-sharing operator to make certain essential data publicly available free of charge and to update it frequently. Furthermore, the minister responsible for Road Traffic (hereinafter "the minister") may request additional information to assess the effectiveness of the car-sharing offer and adjust mobility policies accordingly.

1 The Article 29 Working Party was an advisory body that advised the Commission on data protection

issues and contributed to the development of harmonized data protection policies in the EU. Following the entry into force of the GDPR on May 25, 2018, the European Data Protection Board succeeded this working party.

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9. In accordance with the first paragraph, each car-sharing operator must make certain data available to the general public, namely the geographical location of car-sharing stations, the contact details of the operator, the category of vehicles at the stations, the brand name and model of vehicles at the stations, the availability of vehicles, as well as a link to the operator's distribution channel. The National Commission wishes to emphasize that this does not involve personal data and believes that the GDPR is not applicable.

10. Furthermore, according to the second paragraph, the car-sharing operator supports the minister in all actions that require direct communication with its customers in order to conduct targeted surveys aimed at improving the effectiveness of public mobility policies and quantifying the impact of allocating public space to car-sharing. These actions include providing customers with the necessary information to participate in the survey, encouraging customers to participate, as well as assessing the representativeness of the sample. The National Commission regrets that the authors of the draft law do not provide explanations on how the representativeness of the sample will be evaluated. Moreover, it wishes to emphasize that Article 8.2 of the draft law cannot serve as a legal basis for any potential transmission of personal data of the car-sharing operator's customers to the minister. The CNPD understands that participation in the surveys is voluntary, so the processing of personal data of customers carried out in the context of these surveys will find its legal basis in the consent of the individuals concerned, in accordance with Article 6.1.a) of the GDPR. Thus, the role of car-sharing operators will essentially consist of relaying to customers information about the possibility of participating in surveys conducted by the minister, while respecting the applicable data protection rules.

11. Finally, the minister may, in accordance with the third paragraph, request from the operators "anonymous data on the number, distance traveled, and timing of trips starting from one or more stations, as well as pseudonymized data on the frequency and timing of use." Thus, this provision refers, on the one hand, to anonymous data and, on the other hand, to pseudonymized data. First, the CNPD wishes to remind that at the end of the anonymization process, the GDPR and other rules regarding the protection of personal data no longer apply. Following Recital 26 of the GDPR, "[...] [t]herefore, there is no need to apply the principles relating to the protection of personal data to anonymous information, that is to say, information that does not relate to an identified or identifiable natural person, nor to personal data rendered anonymous in such a way that the data subject is not or no longer identifiable. The [GDPR] therefore does not apply to..."

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the modified grand-ducal regulation of August 26, 1993 relating to taxed warnings, deposits for non-resident offenders, as well as enforcement measures of legislation regarding the impounding of vehicles and points-based driving licenses; 3° the modified grand-ducal regulation of January 26, 2016 relating to the reception and registration of motor vehicles.

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****Processing of such anonymous information, including for statistical or research purposes.****

12. On the other hand, the pseudonymization procedure should be considered one of the technical and organizational measures that the data controller may need to implement in order to mitigate risks to the data subjects. In accordance with Article 4.5) of the GDPR, pseudonymization is defined as the "processing of personal data in such a way that the data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures to ensure that the personal data is not attributed to an identified or identifiable natural person." Indeed, personal data that has been pseudonymized can, by definition, still be indirectly attributed to a specific natural person through the use of additional information and remains, therefore, subject to the GDPR.

13. According to Article 8.3 of the draft law, the minister may request pseudonymized data from car-sharing operators "in order to assess the effectiveness of the car-sharing offer at specific public road stations with a view to adapting the transport offer to the needs of the population and ensuring the most efficient allocation of space to transport modes." As mentioned above, pseudonymized data should still be considered personal data, as it concerns information about an indirectly identifiable natural person, and the GDPR fully applies to its processing. Under Recital 39 of the GDPR, "personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means." The National Commission questions the necessity of transmitting pseudonymized data to assess the effectiveness of the car-sharing offer and wonders whether using the data in an aggregated form such that individual movements cannot be identified would be sufficient to achieve the said purpose.

14. In the event that the authors of the draft law wish to maintain the principle of transmitting pseudonymized data, the question arises regarding the proportionality of this limitation on the right to informational self-determination and the protection of personal data: Does the pursued purpose, namely the assessment of the effectiveness of the car-sharing offer, justify a limitation of these constitutionally protected rights? Furthermore, the National Commission believes that the minister's power to request the

2 For all practical purposes, the CNPD refers to Opinion 05/2014 of the "Article 29" Working Party on anonymization techniques, p. 10, available at:

<https://cnDd.Dublic.lu/fr/actualites/international/2014/05/G29-anonvmisation.html>.

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****Transmission of Personal Data****

The transmission of personal data is insufficiently defined in a matter reserved for law under Articles 31 and 37 of the Constitution. Thus, the data that car-sharing operators would be required to transmit to the minister must be precisely and restrictively stated at the level of the law.

15. In this context, it should be noted that the explanatory memorandum of the draft Grand-Ducal regulation indicates that this text "also specifies the sharing of user statistics with public authorities,

which can provide valuable information for traffic planning and decision-making regarding infrastructure, parking, and other topics that contribute to reducing traffic congestion and air pollution." However, the draft Grand-Ducal regulation does not contain such a provision.

****III. Databases (Art. 9 of the Draft Law)****

a) On the Structure of Article 9

16. Article 9 of the draft law provides for the establishment of two personal data databases. According to the understanding of the National Commission, one is dedicated to the management of car-sharing licenses and the other to the registration of specific information related to the issuance and administrative management of the distinguishing sign. The wording of the draft law suggests that the latter creates these two databases. However, the CNPD notes that the information listed in paragraph 4 is introduced into a database that already exists and for which the draft law simply provides an additional purpose. Indeed, the information related to point 3 of paragraph 1 is recorded in the national database concerning vehicles registered in Luxembourg, the legal basis of which is Article 4.2 of the amended law of February 14, 1955, concerning the regulation of traffic on all public roads.

17. Furthermore, it is difficult to determine which paragraph is associated with which database. It is not clear from the provision whether the measures referred to in paragraphs 4 to 7 of Article 9 of the draft law relate to the database concerning car-sharing licenses or to the national database concerning vehicles registered in Luxembourg. In order to ensure better readability and to strengthen legal certainty, the National Commission therefore suggests providing a specific article for each of the respective databases. By separating the corresponding provisions, it would be easier to group, for example, the purposes for each database or to implement appropriate data protection measures.

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18. Furthermore, the authors of the bill should ensure that the provisions regarding the registration of specific information related to the issuance and administrative management of the distinctive sign provided for in Article 7 are coherently aligned with the provisions of the aforementioned law of February 14, 1955. The CNPD wonders whether it would be more appropriate to amend the latter to include the additional purpose that point 3° of paragraph 1 intends to introduce.

b) On the role of different actors

19. The concept of data controller plays an important role in the application of the GDPR as it determines who is responsible for the various rules regarding data protection as well as how the data subjects can exercise their rights. It should be recalled that Article 4.7) of the GDPR defines the data controller as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller may be designated or the specific criteria for its designation may be provided for by Union law or the law of a Member State." Furthermore, Article 4.8) of the GDPR defines the processor as "the natural or legal person, public authority, agency or other body which processes personal data on behalf of the data controller."

20. It follows from paragraphs 6 and 7 of Article 9 of the bill that "the minister has the status of data

controller in accordance with the provisions of Article 4, point 7) of the [GDPR],” and “the SNCA has the status of processor in accordance with the provisions of Article 4, point 8), of the [GDPR].” The National Commission welcomes the fact that the authors of the bill specify the role of the different actors within the framework of Article 9 of the bill. However, it is advisable to recommend to the authors of the bill to clarify in the article for which database the SNCA acts as a processor for the minister. Indeed, the CNPD wonders whether the SNCA acts as a processor for both of the aforementioned databases or whether the authors of the bill are referring solely to the national database concerning vehicles registered in Luxembourg and believes that the explanations contained in this regard in the commentary of Article 9 do not provide the necessary clarifications.

3 See in this sense: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, p. 3., available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr_fr

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21. Furthermore, while these provisions pertain to the national database concerning vehicles registered in Luxembourg, the question arises as to whether these clarifications should be integrated into the amended law of May 14, 1955, regarding traffic regulation on all public roads. Reference is made to point 18 of this opinion.

e) On the retention period

22. The National Commission notes favorably that the draft law determines the retention period of the data. Article 9.8 of the draft law states that "The data [...] shall be retained for a period of five years after the end of the approval or the renewed approval and shall be destroyed immediately in the case of a rejected approval request." Nevertheless, in the absence of explanations in the commentary on the article regarding the necessity of retaining the data for a period of five years after the end of the approval or the renewed approval, the CNPD is unable to assess whether the principle of data retention limitation, in accordance with Article 5.1.e) of the GDPR, is respected in this case.

IV.

Regarding the draft Grand-Ducal regulation

23. Article 1 of the draft Grand-Ducal regulation specifies the procedure applicable to requests for approval of car-sharing operators. Even though such approval can only be granted to legal entities, the draft Grand-Ducal regulation provides for the processing of personal data, such as the names and surnames of the legal representative of the applicant company. The CNPD has no particular observations to make in this regard.

24. However, the CNPD notes that Article 3.4.9° of the draft Grand-Ducal regulation states that the subscription contract "fixes" the protection of personal data. The National Commission wishes to remind that it is the GDPR that establishes the applicable rules regarding data protection and that a contract must contain clauses that comply with the rules and principles of the GDPR, such as the right to information by providing the information required under Article 13 of the GDPR. Thus, the National Commission invites the authors of the draft Grand-Ducal regulation to reformulate this provision.

Thus adopted in Belvaux on June 21, 2024.

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